

25NWCV02321 25NWCV02321

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Case Number: 25NWCV02321 Hearing Date: July 21, 2026 Dept: P

JIGAR PATEL, et al vs JAGUAR LAND ROVER NORTH AMERICA,
LLC

CASE NO.: 25NWCV02321

HEARING: 07/21/2026 @

9:30 AM

#8

TENTATIVE ORDER

Plaintiffs Jigar Patel and Sapna Patel's motion to compel
Defendant to produce its PMK for deposition is GRANTED.

Moving party to give notice.

Plaintiffs Jigar Patel and Sapna Patel (Plaintiffs) move to
compel Defendant Jaguar Land Rover North America, LLC (Defendant) to produce a
person most knowledgeable (PMK) with production of documents.

Background

On June 26, 2025, Plaintiffs filed this lemon law action
against Defendants Jaguar Land Rover North America, LLC, Jaguar Land Rover
Cerritos, and Does 1 through 50. The complaint alleges that Plaintiffs
experienced defects and nonconformities to warranty with their new 2023 Land
Rover Range Rover, having VIN: SALKP9E77PA063334 (Subject Vehicle). (Complaint,

¶¶ 13-14.) The complaint asserts four causes of action:

(1) violation of the Song-Beverly Act - breach of express warranty, (2) violation of the Song-Beverly Act - breach of implied warranty, (3) violation of the Song-Beverly Act section 1793.2(b), and (4) violation of Civil Code section 1796.5.

Legal Standard

Under Code of Civil Procedure section 2025.450, subd. (a), a party may move to compel a deponent's attendance and production for inspection of documents if after serving the deposition notice the responding party fails to serve valid objections and fails to appear for the deposition or produce any document described in the deposition notice. A motion under Code of Civil Procedure section 2025.450, subd. (a) must (1) provide specific facts showing good cause justifying the production for inspection of any document and (2) be accompanied by a meet and confer declaration. (Code Civ. Proc., § 2025.450, subd. (b).)

Meet and Confer

Code of Civil Procedure section 2025.450, subd. (b)(2) provides requires the moving party to file a meet and confer declaration under Section 2016.040 "or, when the deponent fails to attend the deposition and produce the documents...a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc., § 2025.450, subd. (b)(2).) The meet and confer declaration "shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code Civ. Proc., § 2016.040.)

Plaintiffs' counsel states that he attempted to meet and confer with defense counsel to schedule alternative dates but Defendant failed to respond prior to the date this motion was filed. (Greco Decl., ¶ 9.) Based on Defendant's failure to respond to Plaintiffs' efforts, the Court proceeds to rule on this motion.

Discussion

Plaintiffs move to compel Defendant to produce its PMK for deposition with production of documents on the grounds that Defendant failed to produce a PMK for a properly noticed deposition and did not provide alternative dates.

On September 22, 2025, Plaintiffs served a Notice of Deposition of Defendant's PMK setting a deposition on October 17, 2025. (Greco Decl., ¶ 3.) The day before the deposition, Defendant alerted Plaintiffs that it would not produce its PMK for deposition. (Greco Decl., ¶ 4.) On November 3, 2025, Plaintiff again noticed a deposition for November 20, 2025. (Greco Decl., ¶ 5.) On November 10, 2025, Defendant objected and said it would not produce a PMK for deposition. (Greco Decl., ¶ 6.) The same happened one more time for a deposition scheduled for January 20, 2026, as Defendant objected to the deposition on the day of the scheduled deposition. (Greco Decl., ¶¶ 7-8.) Plaintiffs then attempted to meet and confer regarding the deposition and requested alternative dates. (Greco Decl., ¶ 9.) Since January 28, 2026, Defendant has not provided Plaintiffs with alternative dates. (Greco Decl., ¶¶ 9-12.)

In opposition, Defendant contends this motion is moot because it offered July 30, 2026 as an alternative date which Plaintiffs accepted. Defendant also argues that it properly objected to the prior notices.

In reply, Plaintiffs argue that Defendant's offer for a date after this motion was filed does not moot this motion. Plaintiffs note that the November 20, 2025 deposition date was an agreed-upon date in which Defendant objected. Plaintiffs also reiterate that Defendant objected to the January 20, 2026 deposition date on the day of the deposition, making objections late and ineffective. Plaintiffs request the Court order a deposition to insure that Defendant will produce a PMK. Plaintiffs show that Defendant refused to stipulate to this deposition date in exchange for taking this motion off calendar. (Greco Decl., ¶ 2, Exh. 1.)

Here, the Court finds that there is no dispute as to whether Defendant will produce a PMK. However, given that Plaintiffs are entitled to depose Defendant's PMK and Defendant has failed to appear or provide alternative dates prior to this motion, the Court finds an order compelling the deposition of Defendant's PMK warranted.

The Court does not address any objections to the categories for examination or requests for production at this time as they are not raised in a separate statement. The Court notes that all that is required under Code of Civil Procedure section 2025.230 is that Plaintiffs provide matters for examination to guide Defendant in selecting a PMK for deposition. Where production of documents is sought in connection with the deposition, the motion

must set forth specific facts showing good cause justifying the production.
(Code Civ. Proc., § 2025.450, subd. (b)(1).) These facts must also be set forth
in a separate statement filed by the moving party. (Cal. Rules of Court, rule
3.1345(a)(5).)

Accordingly, Plaintiffs' motion to compel Defendant to
produce a PMK for deposition is GRANTED.

Defendant is ORDERED to produce a PMK for deposition as
noticed in the amended deposition notice setting the deposition on July 30,
2026. This date may be extended pursuant to agreement between the parties.

Moving party to give notice.